

For the foregoing reasons, the court taxes costs as follows: \$1,530.45 (Item 4, deposition costs) + \$5,561.24 (Item 5, service of process) + \$218,960.93 (Item 8b, expert witness) + \$3,000.70 (Item 11, court reporter and transcript) + \$4,331.76 (Item 15, investigation expenses) = \$ 233,385.08 in total.

Accordingly, Defendants' recoverable costs are reduced from \$358,788.51 to \$125,403.43.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406562	ANDOH vs AMERICAN HONDA MOTOR CO., INC.	MOTION FOR TERMINATING SANCTIONS, INCLUDING TO STRIKE DEFENDANTS ANSWER

Tentative Ruling:

Summary of Ruling:

The Court denies Deny the motion as the evidence presented in Opposition shows Plaintiff did not provide notice of the court's rulings on its discovery orders..

Facts/Procedural Summary

This is a lemon law case. On January 25, 2023, Plaintiff purchased a certified pre-owned 2019 Acura RDX. Plaintiff alleges violations of the written warranty provided at the time of sale.

The parties have engaged in various discovery disputes and motions throughout the litigation. On February 10, 2026, the court granted Plaintiff's Motion to Compel the PMK deposition. Defendant was ordered to produce its PMK within thirty calendar days from entry of the order and to produce responses and production of documents to the associated Request for Production of Documents at the time of the PMK deposition. (2/10/26 Order.)

Defendant did not comply with that order so Plaintiff brought another motion to force Defendant to comply. Defendant did not oppose the motion and the court granted the motion on June 4, 2026. (8/21/26 Order.)

Plaintiff now brings the instant motion for terminating sanctions and asks the court to strike Defendant's Answer and enter default against Defendant. Plaintiff notes Defendant still has not produced a PMK for deposition and has not provided any responsive documents, despite the court's two orders requiring it to do so. Plaintiff argues terminating sanctions are appropriate under CCP §§ 2023.010 and 2023.030.

In Opposition, Defendant argues the Court directed Plaintiff to give notice of the two rulings but did not do so. Defendant states Plaintiff simply never served notice of the February 10, 2026, ruling. (Zipser Decl. ¶2.) Defendant contends Plaintiff did not serve

notice of the June 4, 2026, ruling until August 21, 2026. (Zipser Decl. ¶3.) Plaintiff then filed the instant motion on the next business day. (Zipser Decl. ¶5.) Defendant notes it has “continued working to identify another date on which its [PMQ] can be produced and has communicated with Plaintiff’s counsel to that end.” (Zipser Decl. ¶10.) Defendant asserts it is willing to provide a witness but has not yet been able to find a mutually agreeable date given the impacted nature of the witness and counsel’s calendars.

Jury trial is set for September 28, 2026.²

Analysis

When a party fails to obey a court order compelling responses to a discovery request, the court may impose monetary, issue, evidentiary and/or terminating sanctions. (CCP § 2023.030(a)-(d).) The court has discretion to issue a terminating sanction in response to a misuse of the discovery process. (CCP § 2023.030(d); see also CCP § 2031.310(i).) Terminating sanctions can take the form of (1) striking out the party’s pleading or part thereof; (2) staying further proceedings by that party until he or she obeys the court order; (3) dismissing that party’s action, or any part thereof; or (4) rendering default judgment against that party. (CCP § 2023.030(d).)

Terminating sanctions are appropriate where there is a history of abuse, the violation was willful, and evidence shows less severe sanctions would not result in compliance. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) The following factors may be relevant in deciding whether and which sanctions to impose for disobedience to discovery orders: the time that has elapsed since the discovery was served; whether the party received extensions of time to answer or respond; the number of discovery requests and the burden of replying; the importance of the information sought; whether the answering party acted in good faith and with reasonable diligence; whether answers supplied were evasive or incomplete; the number of questions remaining unanswered; whether the unanswered questions sought information that was difficult to obtain; the existences of prior court orders compelling discovery and the answering party’s compliance with them; whether the party was unable to comply with previous orders regarding discovery; whether an order allowing more time to respond would enable the responding party to supply the necessary information; and whether some sanction short of dismissal or default would be appropriate to the dereliction. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796.)

Terminating sanctions are not appropriate here. Plaintiff did not provide Defendant with notice of the court’s ruling on the first motion to compel and then Plaintiff waited months to provide Defendant with notice of the court’s ruling on the second motion. Plaintiff then filed the instant motion the next business day after finally providing notice of the court’s ruling on the second motion. Plaintiff did not provide any evidence that they served either notice of ruling on Defendant. It is unclear how Plaintiff expected Defendant to comply with a court order it was unaware of. Furthermore, Defendant has indicated it is willing and able to produce the witness for deposition once the parties can find a mutually agreeable date.

² The Discovery Act does not specify any particular notice requirement for imposition of discovery sanctions. The notice required is the same as on motions generally under CCP §1005(b). Since this is a motion for sanctions and not a discovery motion, the 30-day cutoff before trial does not apply.

There is no evidence that less severe sanctions would not result in compliance. Given Defendant's Opposition and declaration in support thereof, it appears no sanctions of any kind are necessary to enforce compliance.

The Court denies Deny the motion as the evidence presented in Opposition shows Plaintiff did not provide notice of the court's rulings on its discovery orders.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF KIMBERLY NAUCLER AS SUCCESSOR-ININTEREST TO KAELYNN FLETCHER TO DEFENDANT'S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

Summary of Ruling: The Court denies the motion finding the motions are moot. Based on the evidence in the before the Court, the responses served by Plaintiffs on 9/15/2026 were Code-compliant and contained no objections. Defendant is awarded \$1,100 in total sanctions for all motions.

Factual / Procedural Context:

This is a wrongful death action. Plaintiffs Elizabeth and Lonnie Fletcher and Kimberly Naucer as successor-in-interest to Kaelynn Fletcher ("Plaintiffs") allege that on Kaelynn Fletcher ("Kaelynn" or "Decedent") was an intellectually disabled dependent adult. On February 23, 2019, Kaelynn was admitted to a care facility owned and/or operated by Defendant Elizabeth Manor Housing Foundation, Inc. dba Elizabeth Manor Residential Care ("Elizabeth Manor"). Plaintiffs allege that staff at Elizabeth Manor insulted, humiliated and mocked Kaelynn's physical appearance and hygiene and threatened her with physical violence. On April 23, 2021, Kaelynn eloped from the facility. On January 13, 2023, Kaelynn slipped and fell while showering due to the staff's failure to properly assist her. In November 2023, Elizabeth Manor failed to seek necessary medical treatment in response to Kaelynn's pneumonia symptoms. Kaelynn was admitted to the hospital where she was treated for pneumonia and underwent surgery to repair a fractured ankle. She was then transferred to a facility owned by Defendant Riverside Healthcare & Wellness Centre, LLC dba Alta Vista Healthcare & Wellness Centre ("Alta Vista"). Plaintiffs allege that Alta Vista failed to provide or administer medical prescribed by the hospital. Plaintiffs further allege that Alta Vista coerced Kaelynn into signing legal and financial documents despite her disability. Kaelynn was permitted to return to Elizabeth Manor for Christmas to receive gifts. While there, she was not provided with a wheelchair or assistance with ambulating. As a result, Kaelynn fell face first at the front door of Elizabeth Manor, striking her head on concrete. Elizabeth